

ASCII MASTER FLOW – PANEL 1/12: Articles 168-212: one mandatory House, one optional House

STATE LEGISLATURE UNDER ARTICLE 168

Governor + Assembly in every State

Governor + Assembly + Council in six bicameral States.

SIX COUNCIL STATES

Andhra Pradesh | Telangana | Uttar Pradesh | Bihar | Maharashtra | Karnataka

CONSTITUTIONAL RAIL

168-177 design/membership/sessions -> 178-195 officers/privilege

-> 196-207 Bills/finance -> 208-212 procedure and judicial restraint.

CORE: Assembly has direct mandate and confidence; Council offers optional delay and continuity.

MUST REMEMBER: Audit Articles 168-212 through legislature shape, Article 169, composition, duration, membership, officers, sessions, privileges, ordinary and financial Bills, budget, procedure and judicial-review limits.

ASCII MASTER FLOW – PANEL 2/12: Article 169 creation or abolition route

STATE ASSEMBLY RESOLUTION

majority of total membership + at least two-thirds present and voting

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PARLIAMENT MAY ENACT ORDINARY LAW

simple majority | incidental constitutional text changes | not Article 368 amendment

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COUNCIL CREATED OR ABOLISHED

LIMITS

Resolution does not itself create a Council and does not compel Parliament to legislate.

ASCII MASTER FLOW – PANEL 3/12: Assembly and Council composition, duration and membership

ASSEMBLY

Article 170 | direct territorial election | normal 60-500 with exceptions
age 25 | five years unless sooner dissolved | confidence chamber.

COUNCIL

Article 171 | $\leq$ one-third Assembly; ordinarily ≥ 40 | permanent | age 30
1/3 local bodies | 1/12 graduates | 1/12 teachers | 1/3 MLAs | 1/6 nominated
STV for elected streams | one-third retire every two years | six-year member term.

ARTICLE 190

resignation needs voluntary/genuine acceptance; unauthorised sixty-day absence may vacate seat.

ASCII MASTER FLOW – PANEL 4/12: Sessions, officers, quorum and participation

ARTICLE 174

Governor summons on advice -> sitting -> adjournment -> prorogation -> Assembly dissolution
no more than six months between last sitting and next session's first sitting.

OFFICERS

Assembly Speaker/Deputy Speaker | Council Chairman/Deputy Chairman

removal: majority of all then members + fourteen days notice.

Speaker survives dissolution until immediately before new Assembly's first meeting.

ARTICLE 189 DEFAULT

until State law provides otherwise: ten or one-tenth, whichever greater.

Ordinary vote: present and voting; chair has casting vote on equality.

TENTH SCHEDULE

party exit/whip breach | independent joins | nominated joins after six months
only two-thirds merger defence survives.

Kihoto Hollohan (1992) -> Speaker is tribunal; judicial review survives.

Keisham Meghachandra (2020) -> ordinarily three-month outer limit absent exception.

Padi Kaushik Reddy (2025) -> Telangana petitions ordered concluded within three months.

Subhash Desai (2023) -> political party, not faction, appoints authorised whip/leader.

Nabam Rebia (2016) referred Speaker-removal issue remains unresolved.

REFORM: reasoned orders, equal procedure and independent adjudication proposal.

ASCII MASTER FLOW – PANEL 6/12: Privileges, accountability devices and review

ARTICLE 194

speech/vote immunity + authorised publication protection -> functional legislative shield.

Sita Soren (2024) -> bribery is not protected by speech/vote privilege.

Amarinder Singh (2010) -> privilege is no general punishment for unrelated past executive acts.

Raja Ram Pal (2007) -> substantive illegality, mala fides and jurisdiction remain reviewable.

ACCOUNTABILITY

questions -> discussions -> motions -> budget scrutiny -> committees -> no-confidence.

Only Assembly confidence can make or unmake the ministry.

TRAP: Governor is a legislative component, not an Article 194-protected member.

CLOSE DISTINCTION: Keep the Council's four-month ordinary-Bill delay, fourteen-day Money-Bill role and absence of a State joint sitting distinct. Article 207(1) and 207(3) financial Bills are not automatically Money Bills.

ASCII MASTER FLOW – PANEL 7/12: Ordinary Bills, lapse and unequal bicameralism

UNICAMERAL

Assembly readings/committee/vote -> Article 200 assent gateway.

BICAMERAL ASSEMBLY BILL

Assembly passes -> Council delay up to 3 months -> Assembly repasses
-> Council delay up to 1 month -> Assembly form prevails; no State joint sitting.

COUNCIL-ORIGINATED BILL

Council passes -> Assembly rejects -> Bill ends; no reciprocal Council override.

ARTICLE 196 LAPSE

prorogation: no lapse | pending only in Council: no lapse on Assembly dissolution
pending in Assembly or passed Assembly/pending Council: lapses on dissolution.

ASCII MASTER FLOW – PANEL 8/12: Money Bills and Article 207 financial categories

MONEY BILL: ARTICLES 198-199

Governor recommendation -> Assembly introduction -> Speaker certificate
-> Council recommendations within 14 days -> Assembly decides -> Article 200.
Council cannot reject, amend, vote grants or force joint sitting.

ARTICLE 207(1) WIDER FINANCIAL BILL

contains Article 199(1)(a)-(f) matter plus others -> recommendation + Assembly origin
-> ordinary-Bill route after introduction.

ARTICLE 207(3) EXPENDITURE BILL

may originate in either House -> cannot be passed without Governor recommendation
for consideration -> not automatically a Money Bill.

ASCII MASTER FLOW – PANEL 9/12: Budget, funds, committees and executive scrutiny

ARTICLES 202-207

Annual Financial Statement -> charged items discussed, not voted

-> demands for grants voted only by Assembly -> appropriation authorises withdrawal

-> Finance/financial legislation completes revenue authority.

COMMITTEE RAIL

Public Accounts -> audit and appropriation

Estimates -> economy and administrative improvement

Public Undertakings -> State enterprise scrutiny

State-specific subject/Bill committees -> evidence and clause-level examination.

EFFECTIVE CONTROL = time + data + research + tracked government response.

ASCII MASTER FLOW – PANEL 10/12: Articles 200-201 assent and current legal control

ARTICLE 200

assent | withhold | return non-Money Bill once | reserve for President
mandatory reservation where High Court constitutional powers are endangered.

ARTICLE 201

President may assent, withhold or direct return of non-Money Bill;
repassage does not compel presidential assent.

State of Tamil Nadu v. Governor of Tamil Nadu (2025)

-> timelines and deemed assent used on the facts.

In re Assent, Withholding or Reservation of Bills (2025)

-> advisory; no rigid timelines or automatic deemed assent;

prolonged unexplained inaction remains reviewable. No technical overruling claim.

ASCII MASTER FLOW – PANEL 11/12: Council versus Assembly and Rajya Sabha

ASSEMBLY

mandatory, direct
may dissolve
confidence + grants
final ordinary-Bill will
Money Bill control
Article 169 initiation

COUNCIL

optional, indirect/nominated
permanent
questions/debate, no confidence control
maximum 3+1 month delay
14-day recommendations
existence depends on Assembly route.

RAJYA SABHA CONTRAST

mandatory federal House | broadly co-equal ordinary law | Articles 249 and 312 powers.
Council legitimacy rests on scrutiny, not federal representation or final veto.

ASCII MASTER FLOW – PANEL 12/12: Current representation controls and exam synthesis

CURRENT AT 28 AUGUST 2026

six Council States | 106th Amendment reservation not operational

Census reference: 1 Mar 2027 generally; 1 Oct 2026 in specified snow-bound areas

2026 delimitation-linked Bills failed/withdrawn and are not law.

REFORM ROUTE

predictable sittings | prior Bill publication | stronger committees

non-partisan research | timely Speaker decisions | transparent nominations

public assent tracker | modernised Council representation.

MAINS SPINE

Article/design -> mechanism -> Assembly-Council comparison -> case/current evidence

-> democratic or scrutiny consequence -> targeted reform -> representative-federal verdict.

LEGAL/SOURCE LIMIT: Six States retain Councils. The 106th Amendment is commenced but its reservation is not operational; Census 2027 reference dates do not equal publication of figures or commencement of delimitation.